

25PSCV03112 25PSCV03112

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 25PSCV03112 Hearing Date: September 2, 2026 Dept: H

Noriega v. LA

County Fire Department, et al,

Case No. 25PSCV03112

ORDER ON

MOTIONS TO COMPEL FURTHER DEPOSITION TESTIMONY

1. Defendant County of Los Angeles' Motion

to Compel Answer to Deposition Questions and Further Testimony of Raymond Lloyd Uhly is GRANTED. Sanctions are awarded in the reduced amount of \$500 and are payable within 30 days of the notice of ruling.

2. Defendant County of Los Angeles' Motion

to Compel Answer to Deposition Questions and Further Testimony of Gerald David Silveira is GRANTED. Sanctions are awarded in the reduced amount of \$500 and are payable within 30 days of the notice of ruling.

Background

Plaintiff Christopher John Noriega ("Plaintiff")

alleges that on August 4, 2024, Plaintiff sustained injuries from a side-swipe motorcycle versus automobile collision.

On August 27, 2025,

Plaintiff filed a complaint, asserting causes of action against Defendants Los Angeles County Fire Department, County of Los Angeles, City of Los Angeles ("City"), Giobani Rigoberto Lopez Meza, and Does 1-50 for: (1) Negligence, (2) Negligence Entrustment, and (3) Negligent Hiring, Training, Retention, and Supervision.

On

December 15, 2025, Plaintiff dismissed City, without prejudice.

The

Final Status Conference is set for October 9, 2026. Trial is set for October 21, 2026.

Legal

Standard

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition for production of business records. (Code Civ. Proc., § 2020.010.)

Code

of Civil Procedure section 2025.480 provides in relevant part:

“(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.”

(Code Civ. Proc., § 2025.480)

1. Motion

to Compel Deposition Answer re: Raymond Lloyd Uhly

Discussion

County of Los Angeles (“County”) moves the Court for an order compelling further testimony of non-party witness Raymond Lloyd Uhly (“Uhly”) at deposition. County also seeks sanctions against Plaintiff and his counsel of record Alex D. Guerrero (“Guerrero”), jointly and severally, in the amount of

\$4,560.00.

Discovery at issue

Question

No. A.1 (Uhlry Depo. 50:24 - 51:2)

"Q: When did you first retain or begin
being represented by Mendez and Sanchez?

Mr. Guerrero: It's not reasonably
calculated to lead to the discovery of admissible evidence. I'm going to
instruct him not to answer. And it also invades –

Mr. Hayden: (inaudible)

Mr. Guerrero: Hang on. Hang on. Hang
on. Hang on. It also -- it also invades the attorney/client privilege.

Mr. Hayden: Okay. Again, are -- are
you going to answer the question, Mr. Uhlry?

The Witness: No."

County

argues that the inquiry as to when the witness retained counsel in this
matter is not protected by attorney-client privilege.

Plaintiff

in his opposition concedes that the question regarding retention is not privileged
but asserts that any further answer should be limited to the fact and date of
retention.

Here,

the Court determines that County is entitled to an answer to the question, and
the Court disagrees that an answer could not be provided without divulging
attorney-client communications. Attorney-client privilege does not protect
independent facts related to communication, such as fact that communication
took place and time and date of any participants in communication. (Coy v.
Superior Court (1962) 58 Cal. 2d 210, 219-220.)

The motion

to compel a further answer is granted as to Question No. A.1.

Question

No. A.2 (Uhlry

Depo. 51:13-16)

“Q: How did your representation from
Mendez and Sanchez come about?

Mr. Guerrero: Same. Objection. Same
instruction.”

County

argues that the lawyer approached the client, whether a third party arranged
the engagement, or whether the client sought the lawyer does not concern communication
within the attorney-client relationship and is therefore not privileged.

Plaintiff

incorporates the same objections as A.1.

Here,

the Court determines that County is entitled to an answer to the question, and
the Court disagrees that an answer could not be provided without divulging
attorney-client communications. Again, the attorney-client privilege does not
protect independent facts related to communication, such as fact that
communication took place and time and date of any participants in communication.
(Coy, supra, 58 Cal. 2d at 219-220.)

The motion

to compel a further answer is granted as to Question No. A.2.

Question No. A.3 (Uhlry Depo. 51:18-21)

Question: “Did the law firm approach
you, Mr. Uhlry?”

Mr.

Guerrero: Same. Objection. Same instruction.

County

argues that the question inquires whether the law firm approached the witness which would directly address the bias of the witness. Further, County argues that the question does not inquire into confidential communication protected by attorney-client privileges.

Plaintiff

argues that while the bare existence of a retainer may not itself be privileged, its terms plainly are, and the question is a gateway into the scope of terms of representation and fee arrangements.

Here,

the Court determines that County is entitled to an answer to the question, and the Court disagrees that an answer could not be provided without divulging attorney-client communications. Again, the attorney-client privilege does not protect independent facts related to communication, such as fact that communication took place and time and date of any participants in communication. (Coy, supra, 58 Cal. 2d at 219-220.)

The motion

to compel a further answer is granted as to Question No. A.3.

Question No. A.4 (Uhlry

Depo. 52:14-18)

"Q: Did

you sign a retainer agreement for Mendez and Sanchez to represent you today?

Mr.

Guerrero: It's not reasonably calculated to lead to the discovery of admissible evidence. And it invades the attorney/client privilege. I instruct him not to answer."

County argues whether a retainer agreement exists

between the witness and counsel is a fact which is not a privileged communication.

Plaintiff

argues that while the bare existence of a retainer may not itself be

privileged, its terms plainly are, and the question is a gateway into the scope of terms of representation and fee arrangements.

Here,

the Court determines that County is entitled to an answer to the question, and the Court disagrees that an answer could not be provided without divulging attorney-client communications. Attorney-client privilege does not protect independent facts related to communication, such as fact that communication took place and time and date of any participants in communication. (Coy, supra, 58 Cal. 2d at 219-220.)

The motion

to compel a further answer is granted as to Question No. A.4.

Question No. A.5 (Uhlry

Depo.52:21-53:2)

“Q: Are

you paying for your representation today, sir? . . . By the Mendez and Sanchez firm?

Mr.

Guerrero: Same objections. Same instruction.”

County argues that only the substance of fee discussion is protected by attorney-client privilege, not the underlying fact of who is paying.

Plaintiff argues that the source and arrangement of payments for a nonparty’s representation implicate the terms of the engagement and fee arrangements, are privileged.

Here,

the Court determines that County is entitled to an answer to the question, and the Court disagrees that an answer could not be provided without divulging attorney-client communications. Attorney-client privilege does not protect independent facts related to communication, such as fact that communication took place and time and date of any participants in communication. (Coy, supra, 58 Cal. 2d at 219-220.)

The motion
to compel a further answer is granted as to Question No. A.5.

Question No. B.1 (Uhlry
Depo. 54:21-55:5)

“Q: Are
you a member of the Vagos Motorcycle Club?

The Witness: I'm not going to answer that.

Mr. Guerrero: And let me just get an
objection out. It's not reasonably calculated to lead to the discovery of
admissible evidence. It violates the deponent's right to privacy. And I would –
he's not going to answer it, it sounds like. But I would instruct him not to
answer anyway.

Mr. Hayden: Sir, I'm going to -- are
you going to take the advice of your counsel?

The Witness: Yes.”

Here,
the Court finds that although associational privacy is a constitutional right,
it is not a recognized evidentiary privilege and, as such, generally does not
give counsel automatic authority to instruct a witness not to answer unless a
protective order is sought or a privilege applies. A constitutional privacy
objection preserves the issue, but the proper procedure is typically to object
and, if necessary, suspend and seek a protective order. (Code Civ. Proc., §
2025.460, subd. (b).)

The motion
to compel a further answer is granted as to Question No. B.1.

Question
No. B.2 (Uhlry
Depo. 55:10-12)

“Q: Do you know is Christopher Keenan
a member of the Vagos Motorcycle Club?

Mr. Guerrero: Same objection. Same instruction."

Here,
the Court finds that although associational privacy is a constitutional right, it is not a recognized evidentiary privilege and, as such, generally does not give counsel automatic authority to instruct a witness not to answer unless a protective order is sought or a privilege applies. A constitutional privacy objection preserves the issue, but the proper procedure is typically to object and, if necessary, suspend and seek a protective order. (Code Civ. Proc., § 2025.460, subd. (b).)

The motion
to compel a further answer is granted as to Question No. B.2.

Question
No. B.3 (Uhlry
Depo. 55:15-16)

"Q: Is Christopher Noriega a member of the Vagos
Motorcycle Club?

Mr. Guerrero: Mr. Guerrero: Same
objection. Same instruction."

Here,
the Court finds that although associational privacy is a constitutional right, it is not a recognized evidentiary privilege and, as such, generally does not give counsel automatic authority to instruct a witness not to answer unless a protective order is sought or a privilege applies. A constitutional privacy objection preserves the issue, but the proper procedure is typically to object and, if necessary, suspend and seek a protective order. (Code Civ. Proc., § 2025.460, subd. (b).)

The motion
to compel a further answer is granted as to Question No. B.3.

Question
No. C.1 (Uhlry

Depo. 55:23-56:11)

"Q: Does the Vagos Club have rules or expectations or codes regarding loyalty to fellow members?

The witness: I'm not going to answer that question.

Mr. Hayden: Okay. There's -- I haven't heard an objection from your counsel, so.

Mr. Guerrero: I don't. It doesn't sound like I need to.

Mr. Hayden: Okay. Well, let's mark this please, Madam Court Reporter.

Mr. Guerrero: Well, I'll belatedly insert the objection, but without an instruction.

Mr. Hayden: Okay. Go for it.

Mr. Guerrero: I just did."

Here,
the Court finds that although associational privacy is a constitutional right, it is not a recognized evidentiary privilege and, as such, generally does not give counsel automatic authority to instruct a witness not to answer unless a protective order is sought or a privilege applies. A constitutional privacy objection preserves the issue, but the proper procedure is typically to object and, if necessary, suspend and seek a protective order. (Code Civ. Proc., § 2025.460, subd. (b).)

The motion
to compel a further answer is granted as to Question No. C.1.

Question

No. C.2 (Uhlry

Depo. 56:13-17)

“Q: Does the Vagos Motorcycle Club
have a code regarding dealing with law enforcement . . . in cooperation and
legal matters?

Mr. Guerrero: Same objection.”

Here,
the Court finds that although associational privacy is a constitutional right,
it is not a recognized evidentiary privilege and, as such, generally does not
give counsel automatic authority to instruct a witness not to answer unless a
protective order is sought or a privilege applies. A constitutional privacy
objection preserves the issue, but the proper procedure is typically to object
and, if necessary, suspend and seek a protective order. (Code Civ. Proc., §
2025.460, subd. (b).)

The motion
to compel a further answer is granted as to Question No. C.2.

Question
No. C.3 (Uhlry
Depo. 57:17-23)

“Q: Mr. Uhlry, do you hold any
positions in the Vagos Motorcycle Club?”

Mr. Guerrero: Same objections.

Mr. Hayden: You can answer, sir.

The witness: I'm not answering.

Mr. Guerrero: That also lacks
foundation and assumes facts not in evidence.”

Here,
the Court finds that although associational privacy is a constitutional right,
it is not a recognized evidentiary privilege and, as such, generally does not
give counsel automatic authority to instruct a witness not to answer unless a
protective order is sought or a privilege applies. A constitutional privacy
objection preserves the issue, but the proper procedure is typically to object

and, if necessary, suspend and seek a protective order. (Code Civ. Proc., § 2025.460, subd. (b).)

The motion

to compel a further answer is granted as to Question No. C.3.

Disqualification of Plaintiff's counsel for conflict
of interest

Defendants seek to disqualify Plaintiff's counsel
under Rule of Professional Conduct 1.7(b) and as adverse representation. That
request is denied.

Rule 1.7 of the California Rules of Professional
Conduct provides, in relevant part, as follows:

“(a) A lawyer shall not, without informed written
consent from each client and compliance with paragraph (d), represent a client
if the representation is directly adverse to another client in the same or a
separate matter.

(b) A lawyer shall not, without informed written
consent from each affected client and compliance with paragraph (d), represent
a client if there is a significant risk the lawyer's representation of the
client will be materially limited by the lawyer's responsibilities to or
relationships with another client, a former client or a third person, or by the
lawyer's own interests.”

Here, the Court cannot conclude that the witness's
interest is directly adverse to Plaintiff's interest inasmuch as the witness is
supporting Plaintiff's claim against County. Therefore, County's request to
disqualify Plaintiff's counsel is denied.

Sanctions

The court shall impose a monetary sanction against
any party, person, or attorney who unsuccessfully makes or opposes a motion to
compel an answer or production, unless it finds that the one subject to the
sanction acted with substantial justification or that other circumstances make
the imposition of the sanction unjust. (Code Civ. Proc., § 2025.460, subd. (b).)

2025.480(j).)

Here, the Court finds that Plaintiff did not act with substantial justification in this circumstance, and many of the requests by Defendant were justified.

Applying a lodestar approach, and in view of the totality of the circumstances, the Court will award sanctions in the reduced amount of \$500.

2. Motion to Compel Deposition Answer re: Gerald David Silveira

Question No. A.1

(Silveira Depo 73:4-5)

“Q:

Have you ever been convicted of a felony?

The

Witness: I’m going to ask my lawyer.

Mr.

Guerrero: I don’t think it is reasonably calculated to lead to the discovery of admissible evidence, and I’ll instruct him not to answer.

Mr.

Hayden: I mean, this goes completely to credibility, counsel.

Mr.

Guerrero: Well, I disagree with you, number one. Number two, he’s not a party to this litigation. If he had been a party to this litigation, I think maybe I would agree with you because it’s on the Judicial Council form, but he’s not a party to this action; he has privacy rights. If you want to do a deep dive into his public records associated with him, that’s your prerogative, but he doesn’t need to volunteer information like this; he’s just a percipient witness. So I instruct you not to answer.

Mr.

Hayden: Okay. Are you going to take the advice of your counsel, sir?

The
witness: Yes.”

Here,
the Court finds that although privacy is a constitutional right, it is not a recognized evidentiary privilege and, as such, generally does not give counsel automatic authority to instruct a witness not to answer unless a protective order is sought or a privilege applies. A constitutional privacy objection preserves the issue, but the proper procedure is typically to object and, if necessary, suspend and seek a protective order. (Code Civ. Proc., § 2025.460, subd. (b).)

Moreover,
the right to privacy is not absolute but subject to a balancing test, with doubts about relevancy generally resolved in favor of permitting the discovery. (SCC Acquisitions, Inc. v. Superior Ct. (2015) 243 Cal. App. 4th 741, 756.) And, as relevant here, California Evidence Code Section 788 provides that “[f]or the purpose of attacking the credibility of a witness, it may be shown by the examination of the witness or by the record of the judgment that he has been convicted of a felony.”

The motion
to compel a further answer is granted as to Question No. A. 1.

Question No. B.1
(Silveira Depo 74:6-7)

“Q:
Have you ever been convicted of fraud or perjury, Mr. Silveira?

Mr.
Guerrero: Same – same objection and same instruction.

Mr.
Hayden: You going to listen to your counsel, sir?

The
witness: Yes.”

Here,

the Court finds that although privacy is a constitutional right, it is not a recognized evidentiary privilege and, as such, generally does not give counsel automatic authority to instruct a witness not to answer unless a protective order is sought or a privilege applies. A constitutional privacy objection preserves the issue, but the proper procedure is typically to object and, if necessary, suspend and seek a protective order. (Code Civ. Proc., § 2025.460, subd. (b).)

Moreover,
the right to privacy is not absolute but subject to a balancing test, with doubts about relevancy generally resolved in favor of permitting the discovery. (SCC Acquisitions, Inc. v. Superior Ct. (2015) 243 Cal. App. 4th 741, 756.) As relevant here, prior fraud or perjury convictions plainly bear on credibility.

The motion
to compel a further answer is granted as to Question No. B. 1.

Question No. B.2
(Silveira Depo 74:14-15)

“Q:
Have you ever been convicted of a crime of moral turpitude?

Mr.
Guerrero: Same objection. Same instruction. Lacks foundation that he even knows what that means. So don't answer it, sir.

Mr.
Hayden: You going to listen to your counsel, Mr. Silveira?

The
witness: Yes.”

Here,
the Court finds that although privacy is a constitutional right, it is not a recognized evidentiary privilege and, as such, generally does not give counsel automatic authority to instruct a witness not to answer unless a protective order is sought or a privilege applies. A constitutional privacy objection preserves the issue, but the proper procedure is typically to object

and, if necessary, suspend and seek a protective order. (Code Civ. Proc., § 2025.460, subd. (b).)

Moreover,

the right to privacy is not absolute but subject to a balancing test, with doubts about relevancy generally resolved in favor of permitting the discovery. (SCC Acquisitions, Inc. v. Superior Ct. (2015) 243 Cal. App. 4th 741, 756.) As relevant here, crimes of moral turpitude may reflect on witness credibility.

The motion

to compel a further answer is granted as to Question No. B. 2.

Question No. C.1 (Silveira

Depo. 75:14-22)

“Q: Mr.

Silveira, when did you engage Mr. Guerrero as your counsel?

Mr.

Guerrero: Not reasonably calculated to lead to the discovery of admissible evidence. I instruct you not to answer.

Mr.

Hayden: Are you going to take the advice of your attorney, sir?

The

witness: Yes.”

Here,

the Court determines that Defendants were entitled to an answer to the question, and the Court disagrees that an answer could not be provided without divulging attorney-client communications. Attorney-client privilege does not protect independent facts related to communication, such as fact that communication took place and time and date of any participants in communication. (Coy v. Superior Court (1962) 58 Cal. 2d 210, 219-220.)

The motion

to compel a further answer is granted as to Question No. C. 1.

Disqualification of Plaintiff's counsel for conflict of interest

County seeks to disqualify Plaintiff's counsel under Rule of Professional Conduct 1.7(b) and as adverse representation. That request is denied.

Rule 1.7 of the California Rules of Professional Conduct provides, in relevant part, as follows:

"(a) A lawyer shall not, without informed written consent from each client and compliance with paragraph (d), represent a client if the representation is directly adverse to another client in the same or a separate matter.

(b) A lawyer shall not, without informed written consent from each affected client and compliance with paragraph (d), represent a client if there is a significant risk the lawyer's representation of the client will be materially limited by the lawyer's responsibilities to or relationships with another client, a former client or a third person, or by the lawyer's own interests."

Again, the Court cannot conclude that the witness's interest is directly adverse to Plaintiff's interest inasmuch as the witness is supporting Plaintiff's claim against County. Therefore, County's request to disqualify Plaintiff's counsel is denied.

Sanctions

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480(j).)

Here, the Court finds that Plaintiff did not act with substantial justification in this circumstance, and many of the requests by County were justified.

Applying a lodestar approach, and in view of the totality of the circumstances, the Court will award sanctions in the reduced amount of \$500.